

CANADA
PROVINCE OF NOVA SCOTIA
PROVINCIAL COURT OF NOVA SCOTIA

INFORMATION

(Section 504 and Section 506 / Form 2 -- Criminal Code of Canada)

IMPORTANT: This is a **DRAFT TEMPLATE** generated for review by a qualified criminal lawyer. It is not a filed document and does not constitute legal advice. The informant must appear before a Justice of the Peace, swear this document under oath, and satisfy the pre-enquete hearing under s.507.1 of the Criminal Code before any process is issued. Parliamentary privilege may apply to statements made in the Nova Scotia House of Assembly. Legal counsel is strongly recommended before proceeding.

PART I -- COURT INFORMATION

Court: Provincial Court of Nova Scotia
Halifax, Nova Scotia
[TO BE ASSIGNED BY COURT REGISTRY]
May 02, 2026

Judic
Court
Date

PART II -- INFORMANT

The following person (the "Informant"), upon reasonable grounds, believes that the person named herein has committed the offence(s) described below, and makes this Information accordingly:

Full Name: _____
Address: _____

Occupation: _____

PART III -- ACCUSED PERSON

Full Name: Brendan Maguire
Member of the Legislative Assembly (MLA), Halifax Atlantic; Nova Scotia Minister of Education
Progressive Conservative Party of Nova Scotia (floor-crosser from Liberal Party)
Nova Scotia House of Assembly, Province House, 1726 Hollis Street, Halifax, NS B3J 2Y3

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PART IV -- PARTICULARS OF ALLEGED OFFENCE(S)

NOTE ON PARLIAMENTARY PRIVILEGE: *Statements made by an MLA on the floor of the legislature are protected by parliamentary privilege under the Constitution Act and the Nova Scotia House of Assembly Act. This Information therefore focuses on the minister's role in authorising, defending, and continuing to fund provincial policy -- not solely on privileged legislative speech. Legal counsel should advise on the precise scope of privilege in this jurisdiction.*

Count 1 -- Aiding or Counselling Aggravated Assault (ss. 21, 22, 268 Criminal Code)

The Informant says that Brendan Maguire, on or between January 1, 2024 and the date of this Information, in the Province of Nova Scotia, did aid, abet, counsel, or procure persons to commit aggravated assault, to wit: by directing, maintaining, and publicly defending provincial policy authorising and funding the performance of irreversible surgical procedures -- specifically gonadectomy, orchiectomy, vaginoplasty, phalloplasty, and/or related genital modification surgeries -- upon minors (persons under the age of 18 years) who, by reason of their age and legal incapacity, are unable to provide the legally valid, fully informed consent required under Canadian law and established international medical ethics instruments, contrary to sections 21, 22, and 268 of the Criminal Code of Canada.

PARTICULARS:

- a) The accused, as Minister of Education, exercised or influenced authority over provincial policy governing schools and health in Nova Scotia, including policies permitting minors to undergo social transition without parental notification, in the Province of Nova Scotia.
- b) In or about April 2026, the accused made public statements before the Nova Scotia House of Assembly explicitly opposing parental authority over children's medical decisions and characterising documented concerns about pediatric irreversible surgical procedures as hate speech, thereby suppressing accountability for and continuing the impugned policy.
- c) Nova Scotia Health has, during the relevant period, performed or funded the performance of irreversible genital modification procedures on minors, procedures which constitute 'wounding,' 'maiming,' or 'disfiguring' within the meaning of s. 268(1) of the Criminal Code.
- d) The relevant minors lack the legal capacity required under the Criminal Code, the Nova Scotia mature minor doctrine, and the Nuremberg Code (1947) to consent to irreversible surgical intervention, and no legally authorised parental or guardian consent was obtained or was required under the impugned policy.
- e) The accused did counsel, aid, and abet the continuation of this policy with knowledge of its effects, contrary to ss. 21 and 22 of the Criminal Code.

Count 2 -- Breach of Public Trust / Misconduct in Public Office (s. 122 Criminal Code)

The Informant further says that Brendan Maguire, on or between January 1, 2024 and the date of this Information, in the Province of Nova Scotia, being a public officer, to wit an elected Member of the Legislative Assembly and appointed Minister of the Crown, did wilfully and intentionally conduct himself in a manner that constitutes a breach of the duties of his office, specifically:

- a) By wielding ministerial authority to sustain provincial funding and policy for irreversible medical procedures on minors in a manner that departs markedly from the standards expected of a public officer, and that causes a significant risk of harm to the children affected;
- b) By publicly misusing his office to characterise legitimate, evidence-based parliamentary concerns about child welfare as hate speech, with the intent and effect of suppressing democratic oversight of a health policy under his ministerial responsibility;
- c) Contrary to section 122 of the Criminal Code of Canada, which provides that every official who, in connection with the duties of his office, commits fraud or a breach of trust is guilty of an indictable offence.

PART V -- APPLICABLE LAW AND AUTHORITIES

Criminal Code of Canada, s. 268

Aggravated assault -- wounding, maiming, or disfiguring

Criminal Code of Canada, ss. 21-22

Parties to offences -- aiding, abetting, counselling

Criminal Code of Canada, s. 122

Breach of trust by public officer

Criminal Code of Canada, s. 504

Private Information before a Justice of the Peace

Criminal Code of Canada, s. 506 (Form 2)

Prescribed form for Information

Criminal Code of Canada, s. 507.1

Pre-enquete hearing requirement

Nuremberg Code (1947), Article 1

Voluntary consent -- legal capacity required; children require guardian proxy

UN Convention on the Rights of the Child, Arts. 3 & 18

Best interests of the child; parental co-responsibility

WMA Helsinki Declaration (2013), Clause 28

Informed consent from legally authorised representative for minors

NS Mature Minor Doctrine (Common Law)

Individualized capacity assessment required -- blanket policy insufficient

Canadian Charter of Rights and Freedoms, s. 7

Right to security of the person -- applies to children

PART VI -- REASONABLE GROUNDS STATEMENT

The Informant states that the reasonable grounds for this Information are as follows:

1. VERIFIED PUBLIC RECORD: On or about April 2026, the accused stated on the floor of the Nova Scotia House of Assembly: 'I'll be damned if I'm going to stand here and listen to someone say that the parents deserve rights over a child. No, they don't. They absolutely don't.' (Source: Nova Scotia Hansard; corroborated by multiple media outlets including Rebel News, Jellyfish News, Juno News, ZeroHedge -- April 2026.)
2. POLICY AUTHORITY: The accused has exercised and continues to exercise ministerial authority over the education portfolio in Nova Scotia, which intersects with policies on social transitioning of children in schools without parental notification.
3. FUNDING RECORD: Nova Scotia Health Authority has during the relevant period funded and performed gender-affirming surgical procedures, including irreversible genital surgeries. The extent of pediatric cases requires disclosure from Nova Scotia Health under a freedom of information request.

4. SUPPRESSION OF OVERSIGHT: The accused has publicly characterised parliamentary debate on the foregoing policy as 'hate speech,' thereby wilfully suppressing legislative accountability for outcomes affecting children.

5. INTERNATIONAL LAW CONFLICT: The impugned policy conflicts with the Nuremberg Code (1947), UNCRC Articles 3 and 18, and the Helsinki Declaration (2013), all of which require legally authorised guardian consent for irreversible medical procedures on minors.

The Informant therefore has reasonable grounds to believe that the accused has committed the offences particularised above and submits this Information accordingly.

PART VII -- ATTACHED SUPPORTING DOCUMENTATION

The following documents are attached or available to support this Information:

Exhibit A: TENET5 Accountability Dossier -- Brendan Maguire (maguire_accountability_dossier.pdf)

Exhibit B: Nova Scotia Hansard extract -- April 2026 (to be obtained from Legislative Library)

Exhibit C: Media corroboration index (Rebel News, Jellyfish News, Juno News -- April 2026)

Exhibit D: FOIA request to Nova Scotia Health re: pediatric gender surgeries (to be filed)

Exhibit E: Nova Scotia Health funding records (publicly available or FOIA)

Exhibit F: Nuremberg Code (1947) full text

Exhibit G: UNCRC Articles 3 and 18 text (Canada ratified 1991)

Exhibit H: WMA Helsinki Declaration (2013) Clause 28

Exhibit I: Nova Scotia mature minor doctrine -- legal authority

Exhibit J: Criminal Code ss. 21, 22, 122, 268 -- annotated

PART VIII -- OATH / AFFIRMATION

I, the undersigned Informant, swear (or solemnly affirm) that the contents of this Information are true to the best of my knowledge, information, and belief.

Signature of Informant

Signature of Justice of the Peace

Printed Name of Informant

Printed Name and Commission Number

Date

Date Sworn / Affirmed**PART IX -- PROCEDURAL GUIDANCE FOR INFORMANT****STEP-BY-STEP PROCESS (FOR GUIDANCE ONLY -- NOT LEGAL ADVICE):**

- 1. RETAIN A LAWYER:** Private prosecutions are complex. Retain a criminal lawyer in Nova Scotia before taking any further steps. A lawyer can assess parliamentary privilege, review the evidentiary threshold, and advise on prosecutorial discretion risks.
- 2. GATHER EXHIBITS:** Obtain the Hansard extract from the Nova Scotia Legislative Library. File a Freedom of Information request to Nova Scotia Health for records of gender-affirming surgeries performed on minors.
- 3. ATTEND COURT:** Take this Information (Form 2) and all supporting exhibits to the Registry of the Provincial Court of Nova Scotia in Halifax. You must swear the Information before a Justice of the Peace.
- 4. PRE-ENQUETE HEARING (s.507.1):** A judge will hold a hearing to determine if there is a prima facie case. The Crown will be notified and may participate. Prepare to present all exhibits and your grounds.
- 5. CROWN INTERVENTION:** The Crown may stay (stop) the prosecution. If so, that decision is reviewable only on clear abuse of process grounds -- an extremely high threshold.
- 6. COST RISK:** If a private prosecution is found vexatious or frivolous, a court may order costs against the informant. Ensure your grounds are solid before filing.

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Draft Date: May 02, 2026 | FOR REVIEW BY QUALIFIED LEGAL COUNSEL ONLY